

KAGAN, J., dissenting

same results with maps conforming to more generic districting criteria (*e. g.*, compactness and contiguity of districts). Over 99% of that expert's 24,518 simulations would have led to the election of at least one more Democrat, and over 70% would have led to two or three more. See *Rucho*, 318 F. Supp. 3d, at 893–894. Based on those and other findings, the District Court determined that the North Carolina plan substantially dilutes the plaintiffs' votes.⁴

Because the Maryland gerrymander involved just one district, the evidence in that case was far simpler—but no less powerful for that. You've heard some of the numbers before. See *supra*, at 725–726. The 2010 census required only a minimal change in the Sixth District's population—the subtraction of about 10,000 residents from more than 700,000. But instead of making a correspondingly minimal adjustment, Democratic officials reconfigured the entire district. They moved 360,000 residents out and another 350,000 in, while splitting some counties for the first time in almost two centuries. The upshot was a district with 66,000 fewer Republican voters and 24,000 more Democratic ones. In the old Sixth, 47% of registered voters were Republicans and only 36% Democrats. But in the new Sixth, 44% of registered voters were Democrats and only 33% Republicans. That reversal of the district's partisan composition translated into four consecutive Democratic victories, including in a wave election year for Republicans (2014). In what was once a party stronghold, Republicans now have little or

⁴The District Court also relied on actual election results (under both the new plan and the similar one preceding it) and on mathematical measurements of the new plan's "partisan asymmetry." See *Rucho*, 318 F. Supp. 3d, at 884–895. Those calculations assess whether supporters of the two parties can translate their votes into representation with equal ease. See Stephanopoulos & McGhee, *The Measure of a Metric*, 70 *Stan. L. Rev.* 1503, 1505–1507 (2018). The court found that the new North Carolina plan led to extreme asymmetry, compared both to plans used in the rest of the country and to plans previously used in the State. See *Rucho*, 318 F. Supp. 3d, at 886–887, 892–893.

KAGAN, J., dissenting

no chance to elect their preferred candidate. The District Court thus found that the gerrymandered Maryland map substantially dilutes Republicans' votes. See *Lamone*, 348 F. Supp. 3d, at 519–520.

The majority claims all these findings are mere “prognostications” about the future, in which no one “can have any confidence.” *Ante*, at 711 (internal quotation marks omitted). But the courts below did not gaze into crystal balls, as the majority tries to suggest. Their findings about these gerrymanders' effects on voters—both in the past and predictably in the future—were evidence-based, data-based, statistics-based. Knowledge-based, one might say. The courts did what anyone would want a decisionmaker to do when so much hangs in the balance. They looked hard at the facts, and they went where the facts led them. They availed themselves of all the information that mapmakers (like Hoffeller and Hawkins) and politicians (like Lewis and O'Malley) work so hard to amass and then use to make every districting decision. They refused to content themselves with unsupported and out-of-date musings about the unpredictability of the American voter. See *ante*, at 712–713; but see Brief for Political Science Professors as *Amici Curiae* 14–20 (citing chapter and verse to the contrary). They did not bet America's future—as today the majority does—on the idea that maps constructed with so much expertise and care to make electoral outcomes impervious to voting would somehow or other come apart. They looked at the evidence—at the facts about how these districts operated—and they could reach only one conclusion. By substantially diluting the votes of citizens favoring their rivals, the politicians of one party had succeeded in entrenching themselves in office. They had beat democracy.

B

The majority's broadest claim, as I've noted, is that this is a price we must pay because judicial oversight of partisan gerrymandering cannot be “politically neutral” or “manage-

KAGAN, J., dissenting

able.” *Ante*, at 707; see *supra*, at 733. Courts, the majority argues, will have to choose among contested notions of electoral fairness. (Should they take as the ideal mode of districting proportional representation, many competitive seats, adherence to traditional districting criteria, or so forth?) See *ante*, at 704–707. And even once courts have chosen, the majority continues, they will have to decide “[h]ow much is too much?”—that is, how much deviation from the chosen “touchstone” to allow? *Ante*, at 707–708. In answering that question, the majority surmises, they will likely go far too far. See *ante*, at 703–704. So the whole thing is impossible, the majority concludes. To prove its point, the majority throws a bevy of question marks on the page. (I count nine in just two paragraphs. See *ante*, at 707–708.) But it never tries to analyze the serious question presented here—whether the kind of standard developed below falls prey to those objections, or instead allows for neutral and manageable oversight. The answer, as you’ve already heard enough to know, is the latter. That kind of oversight is not only possible; it’s been done.

Consider neutrality first. Contrary to the majority’s suggestion, the District Courts did not have to—and in fact did not—choose among competing visions of electoral fairness. That is because they did not try to compare the State’s actual map to an “ideally fair” one (whether based on proportional representation or some other criterion). Instead, they looked at the difference between what the State did and what the State would have done if politicians hadn’t been intent on partisan gain. Or put differently, the comparator (or baseline or touchstone) is the result not of a judge’s philosophizing but of the State’s own characteristics and judgments. The effects evidence in these cases accepted as a given the State’s physical geography (*e. g.*, where does the Chesapeake run?) and political geography (*e. g.*, where do the Democrats live on top of each other?). So the courts did not, in the majority’s words, try to “counteract ‘natural’ gerry-

KAGAN, J., dissenting

mandering caused, for example, by the urban concentration of one party.” *Ante*, at 708. Still more, the courts’ analyses used the State’s own criteria for electoral fairness—except for naked partisan gain. Under their approach, in other words, the State selected its own fairness baseline in the form of its other districting criteria. All the courts did was determine how far the State had gone off that track because of its politicians’ effort to entrench themselves in office.

The North Carolina litigation well illustrates the point. The thousands of randomly generated maps I’ve mentioned formed the core of the plaintiffs’ case that the North Carolina plan was an “extreme[] outlier.” *Rucho*, 318 F. Supp. 3d, at 852 (internal quotation marks omitted); see *supra*, at 737–739. Those maps took the State’s political landscape as a given. In North Carolina, for example, Democratic voters are highly concentrated in cities. That fact was built into all the maps; it became part of the baseline. See *Rucho*, 318 F. Supp. 3d, at 896–897. On top of that, the maps took the State’s legal landscape as a given. They incorporated the State’s districting priorities, excluding partisanship. So in North Carolina, for example, all the maps adhered to the traditional criteria of contiguity and compactness. See *supra*, at 738–739. But the comparator maps in another State would have incorporated different objectives—say, the emphasis Arizona places on competitive districts or the requirement Iowa imposes that counties remain whole. See Brief for Mathematicians et al. as *Amici Curiae* 19–20. The point is that the assemblage of maps, reflecting the characteristics and judgments of the State itself, creates a neutral baseline from which to assess whether partisanship has run amok. Extreme outlier as to what? As to the other maps the State could have produced given its unique political geography and its chosen districting criteria. *Not* as to the maps a judge, with his own view of electoral fairness, could have dreamed up.

The Maryland court lacked North Carolina’s fancy evidence, but analyzed the gerrymander’s effects in much the

KAGAN, J., dissenting

same way—not as against an ideal goal, but as against an *ex ante* baseline. To see the difference, shift gears for a moment and compare Maryland and Massachusetts—both of which (aside from Maryland’s partisan gerrymander) use traditional districting criteria. In those two States alike, Republicans receive about 35% of the vote in statewide elections. See Almanac of American Politics 2016, at 836, 880. But the political geography of the States differs. In Massachusetts, the Republican vote is spread evenly across the State; because that is so, districting plans (using traditional criteria of contiguity and compactness) consistently lead to an all-Democratic congressional delegation. By contrast, in Maryland, Republicans are clumped—into the Eastern Shore (the First District) and the Northwest Corner (the old Sixth). Claims of partisan gerrymandering in those two States could come out the same way if judges, à la the majority, used their own visions of fairness to police districting plans; a judge in each State could then insist, in line with proportional representation, that 35% of the vote share entitles citizens to around that much of the delegation. But those suits would not come out the same if courts instead asked: What would have happened, given the State’s natural political geography and chosen districting criteria, had officials not indulged in partisan manipulation? And that is what the District Court in Maryland inquired into. The court did not strike down the new Sixth District because a judicial ideal of proportional representation commanded another Republican seat. It invalidated that district because the quest for partisan gain made the State override *its own* political geography and districting criteria. So much, then, for the impossibility of neutrality.

The majority’s sole response misses the point. According to the majority, “it does not make sense to use” a State’s own (non-partisan) districting criteria as the baseline from which to measure partisan gerrymandering because those criteria “will vary from State to State and year to year.” *Ante*, at 715. But that is a virtue, not a vice—a feature, not a bug.

KAGAN, J., dissenting

Using the criteria the State itself has chosen at the relevant time prevents any judicial predilections from affecting the analysis—exactly what the majority claims it wants. At the same time, using those criteria enables a court to measure just what it should: the extent to which the pursuit of partisan advantage—by these legislators at this moment—has distorted the State’s districting decisions. Sure, different non-partisan criteria could result, as the majority notes, in different partisan distributions to serve as the baseline. *Ibid.* But that in itself raises no issue: Everyone agrees that state officials using non-partisan criteria (*e. g.*, must counties be kept together? should districts be compact?) have wide latitude in districting. The problem arises only when legislators or mapmakers substantially deviate from the baseline distribution by manipulating district lines for partisan gain. So once again, the majority’s analysis falters because it equates the demand to eliminate partisan gerrymandering with a demand for a single partisan distribution—the one reflecting proportional representation. See *ante*, at 704–705. But those two demands are different, and only the former is at issue here.

The majority’s “how much is too much” critique fares no better than its neutrality argument. How about the following for a first-cut answer: This much is too much. By any measure, a map that produces a greater partisan skew than any of 3,000 randomly generated maps (all with the State’s political geography and districting criteria built in) reflects “too much” partisanship. Think about what I just said: The absolute worst of 3,001 possible maps. The *only one* that could produce a 10–3 partisan split even as Republicans got a bare majority of the statewide vote. And again: How much is too much? This much is too much: A map that without any evident non-partisan districting reason (to the contrary) shifted the composition of a district from 47% Republicans and 36% Democrats to 33% Republicans and 42% Democrats. A map that in 2011 was responsible for the

KAGAN, J., dissenting

largest partisan swing of a congressional district in the country. See *Lamone*, 348 F. Supp. 3d, at 519. Even the majority acknowledges that “[t]hese cases involve blatant examples of partisanship driving districting decisions.” *Ante*, at 714. If the majority had done nothing else, it could have set the line here. How much is too much? At the least, any gerrymanders as bad as these.

And if the majority thought that approach too case-specific, see *ante*, at 716, it could have used the lower courts’ general standard—focusing on “predominant” purpose and “substantial” effects—without fear of indeterminacy. I do not take even the majority to claim that courts are incapable of investigating whether legislators mainly intended to seek partisan advantage. See *ante*, at 707–708 (focusing on the difficulty of measuring effects). That is for good reason. Although purpose inquiries carry certain hazards (which courts must attend to), they are a common form of analysis in constitutional cases. See, e.g., *Miller v. Johnson*, 515 U. S. 900, 916 (1995); *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520, 533 (1993); *Washington v. Davis*, 426 U. S. 229, 239 (1976). Those inquiries would be no harder here than in other contexts.

Nor is there any reason to doubt, as the majority does, the competence of courts to determine whether a district map “substantially” dilutes the votes of a rival party’s supporters from the everything-but-partisanship baseline described above. (Most of the majority’s difficulties here really come from its idea that ideal visions set the baseline. But that is double-counting—and, as already shown, wrong to boot.) As this Court recently noted, “the law is full of instances” where a judge’s decision rests on “estimating rightly . . . some matter of degree”—including the “substantial[ity]” of risk or harm. *Johnson v. United States*, 576 U. S. 591, 604 (2015) (internal quotation marks omitted); see, e.g., *Ohio v. American Express Co.*, 585 U. S. 529, 541 (2018) (determining “substantial anticompetitive effect[s]” when applying the

KAGAN, J., dissenting

Sherman Act); *United States v. Davis*, 588 U. S. 445, 476–479 (2019) (KAVANAUGH, J., dissenting) (cataloging countless statutes requiring a “substantial” risk of harm). The majority is wrong to think that these laws typically (let alone uniformly) further “confine[] and guide[]” judicial decisionmaking. *Ante*, at 716. They do not, either in themselves or through “statutory context.” *Ibid.* To the extent additional guidance has developed over the years (as under the Sherman Act), courts themselves have been its author—as they could be in this context too. And contrary to the majority’s suggestion, see *ibid.*, courts all the time make judgments about the substantiality of harm without reducing them to particular percentages. If courts are no longer competent to do so, they will have to relinquish, well, substantial portions of their docket.

And the combined inquiry used in these cases set the bar high, so that courts could intervene in the worst partisan gerrymanders, but no others. Or to say the same thing, so that courts could intervene in the kind of extreme gerrymanders that nearly every Justice for decades has thought to violate the Constitution. See *supra*, at 732–733. Illicit purpose was simple to show here only because politicians and mapmakers thought their actions could not be attacked in court. See *Rucho*, 318 F. Supp. 3d, at 808 (quoting Lewis’s statements to that effect). They therefore felt free to openly proclaim their intent to entrench their party in office. See *supra*, at 723–726. But if the Court today had declared that behavior justiciable, such smoking guns would all but disappear. Even assuming some officials continued to try implementing extreme partisan gerrymanders,⁵ they would not

⁵ A decision of this Court invalidating the North Carolina and Maryland gerrymanders would of course have curbed much of that behavior. In districting cases no less than others, officials respond to what this Court determines the law to sanction. See, e.g., Charles & Fuentes-Rohwer, Judicial Intervention as Judicial Restraint, 132 Harv. L. Rev. 236, 269 (2018) (discussing how the Court’s prohibition of racial gerrymanders affected districting).

KAGAN, J., dissenting

brag about their efforts. So plaintiffs would have to prove the intent to entrench through circumstantial evidence—essentially showing that no other explanation (no geographic feature or non-partisan districting objective) could explain the districting plan’s vote dilutive effects. And that would be impossible unless those effects were even more than substantial—unless mapmakers had packed and cracked with abandon in unprecedented ways. As again, they did here. That the two courts below found constitutional violations does not mean their tests were unrigorous; it means that the conduct they confronted was constitutionally appalling—by even the strictest measure, inordinately partisan.

The majority, in the end, fails to understand both the plaintiffs’ claims and the decisions below. Everything in today’s opinion assumes that these cases grew out of a “desire for proportional representation” or, more generally phrased, a “fair share of political power.” *Ante*, at 704, 709. And everything in it assumes that the courts below had to (and did) decide what that fair share would be. But that is not so. The plaintiffs objected to one specific practice—the extreme manipulation of district lines for partisan gain. Elimination of that practice could have led to proportional representation. Or it could have led to nothing close. What was left after the practice’s removal could have been fair, or could have been unfair, by any number of measures. That was not the crux of this suit. The plaintiffs asked only that the courts bar politicians from entrenching themselves in power by diluting the votes of their rivals’ supporters. And the courts, using neutral and manageable—and eminently legal—standards, provided that (and only that) relief. This Court should have cheered, not overturned, that restoration of the people’s power to vote.

III

This Court has long understood that it has a special responsibility to remedy violations of constitutional rights re-

KAGAN, J., dissenting

sulting from politicians' districting decisions. Over 50 years ago, we committed to providing judicial review in that sphere, recognizing as we established the one-person-one-vote rule that "our oath and our office require no less." *Reynolds*, 377 U. S., at 566. Of course, our oath and our office require us to vindicate all constitutional rights. But the need for judicial review is at its most urgent in cases like these. "For here, politicians' incentives conflict with voters' interests, leaving citizens without any political remedy for their constitutional harms." *Gill*, 585 U. S., at 85–86 (KAGAN, J., concurring). Those harms arise because politicians want to stay in office. No one can look to them for effective relief.

The majority disagrees, concluding its opinion with a paean to congressional bills limiting partisan gerrymanders. "Dozens of [those] bills have been introduced," the majority says. *Ante*, at 720. One was "introduced in 2005 and has been reintroduced in every Congress since." *Ante*, at 721. And might be reintroduced until the end of time. Because what all these *bills* have in common is that they are not *laws*. The politicians who benefit from partisan gerrymandering are unlikely to change partisan gerrymandering. And because those politicians maintain themselves in office through partisan gerrymandering, the chances for legislative reform are slight.

No worries, the majority says; it has another idea. The majority notes that voters themselves have recently approved ballot initiatives to put power over districting in the hands of independent commissions or other non-partisan actors. See *ante*, at 719. Some Members of the majority, of course, once thought such initiatives unconstitutional. See *Arizona State Legislature*, 576 U. S., at 824–825 (ROBERTS, C. J., dissenting). But put that aside. Fewer than half the States offer voters an opportunity to put initiatives to direct vote; in all the rest (including North Carolina and Maryland), voters are dependent on legislators to make electoral

KAGAN, J., dissenting

changes (which for all the reasons already given, they are unlikely to do). And even when voters have a mechanism they can work themselves, legislators often fight their efforts tooth and nail. Look at Missouri. There, the majority touts a voter-approved proposal to turn districting over to a state demographer. See *ante*, at 719–720. But before the demographer had drawn a single line, Members of the state legislature had introduced a bill to start undoing the change. See Mo. H. J. Res. 48, 100th Gen. Assembly, 1st Reg. Sess. (2019). I’d put better odds on that bill’s passage than on all the congressional proposals the majority cites.

The majority’s most perplexing “solution” is to look to state courts. *Ante*, at 719. “[O]ur conclusion,” the majority states, does not “condemn complaints about districting to echo into a void”: Just a few years back, “the Supreme Court of Florida struck down that State’s congressional districting plan as a violation” of the State Constitution. *Ibid.*; see *League of Women Voters of Florida v. Detzner*, 172 So. 3d 363 (2015). And indeed, the majority might have added, the Supreme Court of Pennsylvania last year did the same thing. See *League of Women Voters*, 645 Pa., at 123–124, 178 A. 3d, at 818. But what do those courts know that this Court does not? If they can develop and apply neutral and manageable standards to identify unconstitutional gerrymanders, why couldn’t we?⁶

⁶Contrary to the majority’s suggestion, state courts do not typically have more specific “standards and guidance” to apply than federal courts have. *Ante*, at 31. The Pennsylvania Supreme Court based its gerrymandering decision on a constitutional clause providing only that “[e]lections shall be free and equal” and no one shall “interfere to prevent the free exercise of the right of suffrage.” *League of Women Voters*, 645 Pa., at 100, 178 A. 3d, at 803–804 (quoting Pa. Const., Art. I, § 5). And even the Florida “Fair Districts Amendment,” which the majority touts, says nothing more than that no districting plan “shall be drawn with the intent to favor or disfavor a political party.” Fla. Const., Art. III, § 20(a). If the majority wants the kind of guidance that will keep courts from

KAGAN, J., dissenting

We could have, and we should have. The gerrymanders here—and they are typical of many—violated the constitutional rights of many hundreds of thousands of American citizens. Those voters (Republicans in the one case, Democrats in the other) did not have an equal opportunity to participate in the political process. Their votes counted for far less than they should have because of their partisan affiliation. When faced with such constitutional wrongs, courts must intervene: “It is emphatically the province and duty of the judicial department to say what the law is.” *Marbury v. Madison*, 1 Cranch 137, 177 (1803). That is what the courts below did. Their decisions are worth a read. They (and others that have recently remedied similar violations) are detailed, thorough, painstaking. They evaluated with immense care the factual evidence and legal arguments the parties presented. They used neutral and manageable and strict standards. They had not a shred of politics about them. Contra the majority, see *ante*, at 721, this *was* law.

That is not to deny, of course, that these cases have great political consequence. They do. Among the *amicus* briefs here is one from a bipartisan group of current and former Members of the House of Representatives. They describe all the ways partisan gerrymandering harms our political system—what they call “a cascade of negative results.” Brief as *Amicus Curiae* 5. These artificially drawn districts shift influence from swing voters to party-base voters who participate in primaries; make bipartisanship and pragmatic compromise politically difficult or impossible; and drive voters away from an ever more dysfunctional political process. See *id.*, at 5–6. Last year, we heard much the same from current and former state legislators. In their view,

intervening too far in the political sphere, see *ante*, at 704, that Amendment does not provide it: The standard is in fact a good deal less exacting than the one the District Courts below applied. In any event, only a few States have a constitutional provision like Florida’s, so the majority’s state-court solution does not go far.

KAGAN, J., dissenting

partisan gerrymandering has “sounded the death-knell of bipartisanship,” creating a legislative environment that is “toxic” and “tribal.” Brief as *Amicus Curiae* in *Gill v. Whitford*, O. T. 2016, No. 16–1161, pp. 6, 25. Gerrymandering, in short, helps create the polarized political system so many Americans loathe.

And gerrymandering is, as so many Justices have emphasized before, anti-democratic in the most profound sense. See *supra*, at 726–727. In our government, “all political power flows from the people.” *Arizona State Legislature*, 576 U. S., at 824. And that means, as Alexander Hamilton once said, “that the people should choose whom they please to govern them.” 2 Debates on the Constitution 257 (J. Elliot ed. 1891). But in Maryland and North Carolina they cannot do so. In Maryland, election in and election out, there are 7 Democrats and 1 Republican in the congressional delegation. In North Carolina, however the political winds blow, there are 10 Republicans and 3 Democrats. Is it conceivable that someday voters will be able to break out of that prefabricated box? Sure. But everything possible has been done to make that hard. To create a world in which power does not flow from the people because they do not choose their governors.

Of all times to abandon the Court’s duty to declare the law, this was not the one. The practices challenged in these cases imperil our system of government. Part of the Court’s role in that system is to defend its foundations. None is more important than free and fair elections. With respect but deep sadness, I dissent.

Syllabus

DEPARTMENT OF COMMERCE ET AL. *v.* NEW YORK
ET AL.CERTIORARI BEFORE JUDGMENT TO THE UNITED STATES
COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 18–966. Argued April 23, 2019—Decided June 27, 2019

In order to apportion congressional representatives among the States, the Constitution requires an “Enumeration” of the population every 10 years, to be made “in such Manner” as Congress “shall by Law direct,” Art. I, § 2, cl. 3; Amdt. 14, § 2. In the Census Act, Congress delegated to the Secretary of Commerce the task of conducting the decennial census “in such form and content as he may determine.” 13 U.S.C. § 141(a). The Secretary is aided by the Census Bureau, a statistical agency in the Department of Commerce. The population count is also used to allocate federal funds to the States and to draw electoral districts. The census additionally serves as a means of collecting demographic information used for a variety of purposes. There have been 23 decennial censuses since 1790. All but one between 1820 and 2000 asked at least some of the population about their citizenship or place of birth. The question was asked of all households until 1950, and was asked of a fraction of the population on an alternative long-form questionnaire between 1960 and 2000. In 2010, the citizenship question was moved from the census to the American Community Survey, which is sent each year to a small sample of households.

In March 2018, Secretary of Commerce Wilbur Ross announced in a memo that he had decided to reinstate a citizenship question on the 2020 census questionnaire at the request of the Department of Justice (DOJ), which sought census block level citizenship data to use in enforcing the Voting Rights Act (VRA). The Secretary’s memo explained that the Census Bureau initially analyzed, and the Secretary considered, three possible courses of action before he chose a fourth option that combined two of the proposed options: reinstate a citizenship question on the decennial census, and use administrative records from other agencies, *e. g.*, the Social Security Administration, to provide additional citizenship data. The Secretary “carefully considered” the possibility that reinstating a citizenship question would depress the response rate, the long history of the citizenship question on the census, and several other factors before concluding that “the need for accurate citizenship data and the limited burden of the question” outweighed fears about a lower response rate.

Syllabus

Here, two separate suits filed in Federal District Court in New York were consolidated: one filed by a group of States, counties, cities, and others, alleging that the Secretary's decision violated the Enumeration Clause and the requirements of the Administrative Procedure Act; the other filed by non-governmental organizations, adding an equal protection claim. The District Court dismissed the Enumeration Clause claim but allowed the other claims to proceed. In June 2018, the Government submitted the Commerce Department's "administrative record"—materials that Secretary Ross considered in making his decision—including DOJ's letter requesting reinstatement of the citizenship question. Shortly thereafter, at DOJ's urging, the Government supplemented the record with a new memo from the Secretary, which stated that he had begun considering the addition of a citizenship question in early 2017 and had asked whether DOJ would formally request its inclusion. Arguing that the supplemental memo indicated that the record was incomplete, respondents asked the District Court to compel the Government to complete the administrative record. The court granted that request, and the parties jointly stipulated to the inclusion of additional materials that confirmed that the Secretary and his staff began exploring reinstatement of a citizenship question shortly after his 2017 confirmation, attempted to elicit requests for citizenship data from other agencies, and eventually persuaded DOJ to make the request. The court also authorized discovery outside the administrative record, including compelling a deposition of Secretary Ross, which this Court stayed pending further review. After a bench trial, the District Court determined that respondents had standing to sue. On the merits, it ruled that the Secretary's action was arbitrary and capricious, based on a pretextual rationale, and violated the Census Act, and held that respondents had failed to show an equal protection violation.

Held:

1. At least some respondents have Article III standing. For a legal dispute to qualify as a genuine case or controversy, at least one plaintiff must "present an injury that is concrete, particularized, and actual or imminent; fairly traceable to the defendant's challenged behavior; and likely to be redressed by a favorable ruling." *Davis v. Federal Election Comm'n*, 554 U. S. 724, 733. The District Court concluded that the evidence at trial established a sufficient likelihood that reinstating a citizenship question would result in noncitizen households responding to the census at lower rates than other groups, which would cause them to be undercounted and lead to many of the injuries respondents asserted—diminishment of political representation, loss of federal funds, degradation of census data, and diversion of resources. For purposes

Syllabus

of standing, these findings of fact were not so suspect as to be clearly erroneous. Several state respondents have shown that if noncitizen households are undercounted by as little as 2%, they will lose out on federal funds that are distributed on the basis of state population. That is a sufficiently concrete and imminent injury to satisfy Article III, and there is no dispute that a ruling in favor of respondents would redress that harm. Pp. 766–768.

2. The Enumeration Clause permits Congress, and by extension the Secretary, to inquire about citizenship on the census questionnaire. That conclusion follows from Congress's broad authority over the census, as informed by long and consistent historical practice that "has been open, widespread, and unchallenged since the early days of the Republic." *NLRB v. Noel Canning*, 573 U. S. 513, 572 (Scalia, J., concurring in judgment). Pp. 768–770.

3. The Secretary's decision is reviewable under the Administrative Procedure Act. The APA instructs reviewing courts to set aside agency action that is "arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with law," 5 U. S. C. § 706(2)(A), but it makes review unavailable "to the extent that" the agency action is "committed to agency discretion by law," § 701(a)(2). The Census Act confers broad authority on the Secretary, but it does not leave his discretion unbounded. The § 701(a)(2) exception is generally limited to "certain categories of administrative decisions that courts traditionally have regarded as 'committed to agency discretion,'" *Lincoln v. Vigil*, 508 U. S. 182, 191. The taking of the census is not one of those areas. Nor is the statute drawn so that it furnishes no meaningful standard by which to judge the Secretary's action, which is amenable to review for compliance with several Census Act provisions according to the general requirements of reasoned agency decisionmaking. Because this is not a case in which there is "no law to apply," *Citizens to Preserve Overton Park, Inc. v. Volpe*, 401 U. S. 402, 410, the Secretary's decision is subject to judicial review. Pp. 770–773.

4. The Secretary's decision was supported by the evidence before him. He examined the Bureau's analysis of various ways to collect improved citizenship data and explained why he thought the best course was to both reinstate a citizenship question and use citizenship data from administrative records to fill in the gaps. He then weighed the value of obtaining more complete and accurate citizenship data against the uncertain risk that reinstating a citizenship question would result in a materially lower response rate, and explained why he thought the benefits of his approach outweighed the risk. That decision was reasonable and reasonably explained, particularly in light of the long history of the citizenship question on the census. Pp. 773–777.

Syllabus

5. The District Court also erred in ruling that the Secretary violated two particular provisions of the Census Act, § 6(c) and § 141(f). Section 6's first two subsections authorize the Secretary to acquire administrative records from other federal agencies and state and local governments, while subsection (c) requires the Secretary, to the maximum extent possible, to use that information "instead of conducting direct inquiries." Assuming that § 6(c) applies, the Secretary complied with it for essentially the same reasons that his decision was not arbitrary and capricious: Administrative records would not, in his judgment, provide the more complete and accurate data that DOJ sought. The Secretary also complied with § 141(f), which requires him to make a series of reports to Congress about his plans for the census. And even if he had violated that provision, the error would be harmless because he fully informed Congress of, and explained, his decision. Pp. 777–780.

6. In order to permit meaningful judicial review, an agency must "disclose the basis" of its action. *Burlington Truck Lines, Inc. v. United States*, 371 U. S. 156, 167–169. A court is ordinarily limited to evaluating the agency's contemporaneous explanation in light of the existing administrative record, *Vermont Yankee Nuclear Power Corp. v. Natural Resources Defense Council, Inc.*, 435 U. S. 519, but it may inquire into "the mental processes of administrative decisionmakers" upon a "strong showing of bad faith or improper behavior," *Overton Park*, 401 U. S., at 420. While the District Court prematurely invoked that exception in ordering extra-record discovery here, it was ultimately justified in light of the expanded administrative record. Accordingly, the District Court's ruling on pretext will be reviewed in light of all the evidence in the record, including the extra-record discovery.

It is hardly improper for an agency head to come into office with policy preferences and ideas, discuss them with affected parties, sound out other agencies for support, and work with staff attorneys to substantiate the legal basis for a preferred policy. Yet viewing the evidence as a whole, this Court shares the District Court's conviction that the decision to reinstate a citizenship question cannot adequately be explained in terms of DOJ's request for improved citizenship data to better enforce the VRA. Several points, taken together, reveal a significant mismatch between the Secretary's decision and the rationale he provided. The record shows that he began taking steps to reinstate the question a week into his tenure, but gives no hint that he was considering VRA enforcement. His director of policy attempted to elicit requests for citizenship data from the Department of Homeland Security and DOJ's Office of Immigration Review before turning to the VRA rationale and DOJ's Civil Rights Division. For its part, DOJ's actions suggest that it was more interested in helping the Commerce Depart-

Syllabus

ment than in securing the data. Altogether, the evidence tells a story that does not match the Secretary's explanation for his decision. Unlike a typical case in which an agency may have both stated and unstated reasons for a decision, here the VRA enforcement rationale—the sole stated reason—seems to have been contrived. The reasoned explanation requirement of administrative law is meant to ensure that agencies offer genuine justifications for important decisions, reasons that can be scrutinized by courts and the interested public. The explanation provided here was more of a distraction. In these unusual circumstances, the District Court was warranted in remanding to the agency. See *Florida Power & Light Co. v. Lorion*, 470 U. S. 729, 744. Pp. 780–785. 351 F. Supp. 3d 502, affirmed in part, reversed in part, and remanded.

ROBERTS, C. J., delivered the opinion for a unanimous Court with respect to Parts I and II, and the opinion of the Court with respect to Parts III, IV–B, and IV–C, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined; with respect to Part IV–A, in which THOMAS, GINSBURG, BREYER, SOTOMAYOR, KAGAN, and KAVANAUGH, JJ., joined; and with respect to Part V, in which GINSBURG, BREYER, SOTOMAYOR, and KAGAN, JJ., joined. THOMAS, J., filed an opinion concurring in part and dissenting in part, in which GORSUCH and KAVANAUGH, JJ., joined, *post*, p. 786. BREYER, J., filed an opinion concurring in part and dissenting in part, in which GINSBURG, SOTOMAYOR, and KAGAN, JJ., joined, *post*, p. 800. ALITO, J., filed an opinion concurring in part and dissenting in part, *post*, p. 821.

Solicitor General Francisco argued the cause for petitioners. With him on the briefs were *Assistant Attorney General Hunt*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Sopan Joshi*, *Mark B. Stern*, *Gerard J. Sinzduk*, and *David Dewhurst*.

Barbara D. Underwood, Solicitor General of New York, argued the cause for respondents State of New York et al. With her on the brief were *Letitia James*, Attorney General of New York, *Steven C. Wu*, Deputy Solicitor General, *Judith N. Vale*, Senior Assistant Solicitor General, *Scott A. Eisman*, Assistant Solicitor General, *Matthew Colangelo*, *Elena Goldstein*, *Zachary W. Carter*, *Dennis J. Herrera*, *Rolando L. Rios*, *John Daniel Reaves*, and *Peter S. Holmes*, and by the Attorneys General for their respective jurisdictions as follows: *Phil Weiser* of Colorado, *William Tong* of Connecticut,

Counsel

Kathleen Jennings of Delaware, *Karl A. Racine* of the District of Columbia, *Kwame Raoul* of Illinois, *Thomas J. Miller* of Iowa, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Keith Ellison* of Minnesota, *Gurbir S. Grewal* of New Jersey, *Hector H. Balderas* of New Mexico, *Joshua H. Stein* of North Carolina, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, and *Robert W. Ferguson* of Washington.

Dale E. Ho argued the cause for respondents *New York Immigration Coalition et al.* With him on the brief were *Adriel I. Cepeda Derieux*, *Cecillia D. Wang*, *David D. Cole*, *Sarah Brannon*, *Davin M. Rosborough*, *Ceridwen Cherry*, *John A. Freedman*, *David J. Weiner*, *Elisabeth S. Theodore*, *Christopher Dunn*, and *Perry M. Grossman*.

Douglas N. Letter argued the cause for the United States House of Representatives as *amicus curiae* urging affirmance. With him on the brief were *Brooks M. Hanner*, *Neal Kumar Katyal*, *Joshua A. Geltzer*, *Amy L. Marshak*, and *Mary B. McCord*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Oklahoma et al. by *Mike Hunter*, Attorney General of Oklahoma, and *Mithun Mansinghani*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Chris Carr* of Georgia, *Curtis T. Hill, Jr.*, of Indiana, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Eric S. Schmitt* of Missouri, *Tim Fox* of Montana, *Doug Peterson* of Nebraska, *Alan Wilson* of South Carolina, *Jason R. Ravnsborg* of South Dakota, *Ken Paxton* of Texas, and *Patrick Morrissey* of West Virginia; for *Citizens United et al.* by *William J. Olson*, *Herbert W. Titus*, *Jeremiah L. Morgan*, *Robert J. Olson*, and *Joseph W. Miller*; for the *Eagle Forum Education & Legal Defense Fund* by *Lawrence J. Joseph*; for the *Immigration Reform Law Institute* by *Christopher J. Hajec*; for *Judicial Watch, Inc.*, et al. by *Robert D. Popper*; for the *Project on Fair Representation* by *William S. Consovoy* and *Bryan K. Weir*; for the *Public Interest Legal Foundation* by *J. Christian Adams* and *Kaylan Phillips*; for the *Republican National Committee et al.* by *Jason Torchinsky*; and for *Ronald A. Cass et al.* by *Mr. Cass, pro se*.

Opinion of the Court

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

The Secretary of Commerce decided to reinstate a question about citizenship on the 2020 census questionnaire. A

Briefs of *amici curiae* urging affirmance were filed for the State of California by *Xavier Becerra*, Attorney General, *Edward C. DuMont*, Solicitor General, *Michael J. Mongan*, Deputy Solicitor General, *Anthony R. Hakl III*, Supervising Deputy Attorney General, *Gabrielle D. Boutin* and *R. Matthew Wise*, Deputy Attorneys General, and *Kristin A. Liska*, Associate Deputy Solicitor General; for Harris County, Texas, et al. by *Susan Hays*, *Terence O'Rourke*, and *Scott Lemond*; for Santa Clara County, California, et al. by *James R. Williams*, *Greta S. Hansen*, *Danielle L. Goldstein*, *Raphael N. Rajendra*, *Michael N. Feuer*, *James P. Clark*, *Kathleen Kenealy*, *Valerie Flores*, *Michael Dundas*, *Dan Satterberg*, *H. Kevin Wright*, *Laurie Webb Daniel*, *Charles L. Coleman III*, *David I. Holtzman*, *Sue Ann Salmon Evans*, and *Keith A. Yeomans*; for San Jose, California, et al. by *Kristen Clarke*, *Jon M. Greenbaum*, *Ezra D. Rosenberg*, *John F. Libby*, *Barry S. Landsberg*, *David L. Shapiro*, *Mark Rosenbaum*, and *Richard Doyle*; for the American Statistical Association et al. by *Ira M. Feinberg*; for the Arab American Institute by *Jason C. Beekman* and *Harsh K. Voruganti*; for Businesses and Business Organizations by *Stuart F. Delery* and *Joshua M. Wesneski*; for the California Legislature by *Robin B. Johansen*; for Catholic Charities of the Archdiocese of New York et al. by *Eamon P. Joyce*; for the Central Valley Immigrant Integration Collaborative et al. by *Nicholas Espiritu*; for Common Cause et al. by *Gregory L. Diskant*; for the Council of the Great City Schools by *John W. Borkowski*, *Aleksandra O. Rushing*, and *Julie Wright Halbert*; for Current Members of Congress et al. by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for the Electronic Privacy Information Center et al. by *Marc Rotenberg* and *Alan Butler*; for Former Census Bureau Directors by *Andrew J. Pincus* and *Michael B. Kimberly*; for Former Federal District Judges by *Derek T. Ho*; for Foundations and Philanthropy-Serving Organizations by *Edward A. Friedman*, *Bruce S. Kaplan*, *Anne E. Beaumont*, and *John N. Orsini*; for Historians and Social Scientists by *Brian A. Sutherland*; for the International Municipal Lawyers Association et al. by *John J. Korzen*; for the KIPP Foundation et al. by *Deborah N. Archer* and *Vincent M. Southerland*; for LatinoJustice PRLDEF et al. by *Ernesto R. Palomo*, *Hugh S. Balsam*, *Wasim K. Bleibel*, *Juan Cartagena*, and *Donald E. Frechette*; for Lawyers for Civil Rights et al. by *Yalonda T. Howze*; for the Leadership Conference on Civil and Human Rights et al. by *Alan E. Schoenfeld*, *Vanita Gupta*, *Corrine Yu*, *Michael Zubrensky*, *Wendy R.*